

ORIGINAL.

(S E R V E D)
(March 20, 2000)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

March 20, 2000

DOCKET NO. 00-04

AL KOGAN d/b/a GALAWAY INTERNATIONAL

v.

**WORLD EXPRESS SHIPPING, TRANSPORTATION AND
FORWARDING SERVICES, INC. d/b/a W.E.S.T.
FORWARDING SERVICES (FMC LIC. #3118-R)**

**MOTION FOR EXTENSION OF TIME TO FILE
ANSWER TO COMPLAINT GRANTED**

On March 16, 2000, counsel for respondent requested additional time to file an answer to the complaint, which answer is currently due on March 21, 2000. Respondent's Motion was filed by fax timely and complies with the relevant Commission rules (46 C.F.R. 502.102, 502.105). There is no opposition to the Motion.

Counsel explains that she is preparing for a complicated jury trial in California and will need time to confer with her client on the many involved matters alleged in the complaint including

allegations of third-party conduct. Although initial pleadings in administrative proceedings are considered to be relatively unimportant, a carefully prepared answer maybe helpful in moving the proceeding along toward a reasonably prompt conclusion. The Motion is therefore granted and the answer will be due on April 11, 2000, as requested.

Counsel for both parties are advised to study the Commission's rules of procedure regarding the use of alternative dispute resolution, settlement, shortened procedure, and any other device that will aid in cutting costs of litigation. See, e g., 46 C.F.R. 502.1, 502.61(d), 502.91(a), 502.91(d), 502.94(c), 502.147(a) Cf. 502.181 - 502.187 (shortened procedure)

Counsel are also advised that evidentiary records in Commission proceedings are often developed by means of the Commission's discovery rules, 46 C.F.R. 502.201 - 502.210, which are generally patterned after the discovery rules followed in federal courts, Rules 26 - 37, F.R.C.P. It is possible, assuming no settlement or mediation or other ADR device, that the parties may be able to submit an adequate record after completing discovery and that an oral trial-type hearing with attendant costs and inconvenience can be avoided.'

The parties are also advised that the Commission has recently established a Bureau of Consumer Complaints and Licensing which is staffed by an attorney experienced in shipping regulatory law who could act as a mediator if the parties so desire

Norman D. Kline

Norman D. Kline
Administrative Law Judge

¹In view of the new date for the filing of an answer, it appears that the three depositions noticed by complainant for March 27, 2000, will be postponed. If so, counsel may select a new date for the depositions. Counsel for complainant is advised that the three notices of deposition filed with the complaint (as required by 46 C.F.R. 502.201(b)) do not comply with 46 C.F.R. 502.203(a) regarding a statement of the matters concerning which each witness will testify. I expect that later notices will be amended to meet this requirement.